

TENTATIVE RULING

Octavio Lopez, et al. v. Barajas Ramirez, et al. (24CV004364)

Plaintiffs' Motion to Compel Responses to Deposition Questions and Production of Documents:

Plaintiffs Octavio Lopez, Antonia Rangel de Lopez, and Nidia Elisa Soto ("Plaintiffs") move to compel third parties Veronica Rubio and Bay Capital Real Estate dba RE/MAX Property Experts to produce documents and testimony withheld based on an attorney-client privilege and work product objection asserted by Defendant Leonor Barajas Ramirez. Ms. Ramirez' objection asserts that Ms. Rubio, as her friend and real estate agent, functioned as a Spanish/English interpreter for communications between Ms. Ramirez and her attorney, Steven Andre, and therefore Ms. Rubio's communications between Ms. Ramirez and Mr. Andre are within the attorney-client privilege and not subject to discovery.

The Motion to Compel is **DENIED**.

The attorney-client privilege applies to (1) communications, (2) intended to be confidential, and (3) made in the course of the lawyer-client relationship. (Evid. Code § 952; *City & County of S.F. v. Superior Court* (1951) 37 Cal.2d 227, 234-235.) The basic policy behind the privilege is to promote the relationship between attorney and client by safeguarding the confidential disclosures of the client and the advice given by the attorney. This policy supports a liberal construction in favor of the exercise of the privilege. (*Benge v. Superior Court* (1982) 131 Cal.App.3d 336, 346.)

The communication must be made "in confidence by a means which, so far as the client is aware, discloses the information to no third persons other than those who are present to further the interest of the client in the consultation or those to whom disclosure is reasonably necessary for the transmission of the information or the accomplishment of the purpose for which the lawyer is consulted" (Evid. Code, § 952; *Insurance Co. of North America v. Superior Court* (1980) 108 Cal.App.3d 758, 762-763.) Those "who are present to further the interest of the client in the consultation" includes a spouse, parent, business associate, joint client or any other person "who may meet with the client and his attorney in regard to a matter of joint concern." (*Benge v. Superior Court* (1982) 131 Cal.App.3d 336, 346.) The proponent of the privilege bears the burden to establish the privilege where a communication was made in the presence of a third party. (See *Behunin v. Superior Court* (2017) 9 Cal.App.5th 833, 844-845.)

Defendant Ramirez has met the burden here to establish the privilege with respect to communications between herself and Mr. Andre which included Ms. Rubio. The Declaration of Steven J. Andre filed in opposition to the Motion to Compel presents evidence that Mr. Andre's purpose in including Ms. Rubio in the communications was solely to facilitate communication given the language barrier between himself and Ms. Ramirez as his client. Mr. Andre explains that Ms. Rubio previously served Ms. Ramirez in this function during prior legal consultations with Mr. Andre unrelated to this action, and that his practice is generally to use client's family or friends in the facilitation of communication with the client. Mr. Andre represents that he utilized

Ms. Rubio to convey “all the sorts of things attorneys typically discuss with a client - me advising my client concerning her rights, counseling her and answering her questions, discussing matters of strategy and going over discovery questions and responses and preparing her for her deposition.” (Andre Declaration ¶5.) Mr. Andre also states that the necessary communication made through Ms. Rubio were meant to be confidential. (Andre Declaration ¶6.)

Although using a party connected to the transaction at issue as an interpreter between attorney and client may not have been a “best practice” for a certified court interpreter, no case cited limits confidential communications between attorneys and clients to those made through a “neutral interpreter” as understood in relation to court cases and as described in CRC Rule 2.890. Moreover, there is no evidence showing that the interests of Ms. Rubio and Ms. Ramirez in the subject transaction were sufficiently adverse to destroy the privilege. (*Behunin v. Superior Court* (2017) 9 Cal.App.5th 833, 845–846.)

Ms. Ramirez is ordered to prepare a legally compliant privilege log describing any communications withheld from production.

Ms. Ramirez is to prepare the court’s order consistent with the tentative ruling.

NOTE RE: TENTATIVE RULING

This tentative ruling becomes the court’s order, and no hearing shall be held unless one of the parties contests it by complying with Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9.

Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.

You must notify the court by emailing TentativeRulings@monterey.courts.ca.gov or by telephoning the Calendar Department at (831) 647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.